BUREAU OF PUBLIC HEALTH PROTECTION
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Public Health
Prevent. Promote. Protect.

Temporary Food Service FAQ's

APPLICATIONS & PERMITS

Q. I am organizing an event with food and/or beverage service. What applications do I need?

A. The event organizer is required to submit a Temporary Event Organizer's Permit application. Each food or beverage vendor that the organizer plans to have at their event must submit a Temporary Event Vendor's permit application or a Temporary Event Vendor Multi Event Permit application. Individual food or beverage vendors are not required to submit an application or permit fee if the vendor possesses a valid annual Temporary Event Sampler's Permit, Temporary Food Service Annual Molluscan Shellfish Permit, or a permit for a (1) Mobile Fast Food Vending Vehicle, (2) Special Event Vehicle, (3) Frozen Dessert Vehicle, or (4) Hot Dog Truck, issued by Suffolk County Department of Health Services.

Q. Is there a fee for the permit(s)?

A. The Organizer Permit Application fee is $210 (if the organizer application and permit fee are submitted less than 21 days prior to the event, an additional $70 late fee will be charged). Before any food vendor permit(s) can be issued, an Organizer application must be submitted and approved. The Vendor Permit Application fee is $95 (if the Vendor Application and permit fee are submitted less than 14 days prior to the event, an additional $70 late fee will be charged).

The Permit Application Fee for the Temporary Event Multi Event Permit is $95 for the first event, and $50 for each additional event included on the same application. If the Multi Event Permit Application is submitted less than 14 days prior to the first listed event, an additional $70 late fee will be charged.

Q. What additional items/documentation must I submit with my application?

Organizers should submit a site plan, water source information (water bill or well water analysis), complete list of food or beverage vendors with daytime contact information, and permit fee payment or proof of tax exempt/not-for profit status.

Vendors must submit proof of possession of Workers' Compensation and Disability Insurance or an approved waiver as follows:

> *NYS Workers' Compensation Law requires that permit applicants submit proof of possession of Workers' Compensation and Disability Insurance coverage or an approved waiver (Form CE-200) if coverage is not provided. Contact the New York State Workers' Compensation Board for requirements and applicability at:*
>
> *1-866-805-3630 or online at https://www.labor.ny.gov/home/*
>
> *One of the following forms **must** be provided:*
>
> 1. *Workers' Compensation – Form C-105.2 **OR** Form U-26.3 **OR** Form SI-12 **OR** Form GSI-105.2*
> 2. *Disability Benefits – Form DB-120.1 **OR** Form DB-155*

Q. My organization is not-for-profit. Do I need to pay the permit fee?

A. Tax exempt forms must be submitted with your permit application in order for the permit fee to be waived. Late fees apply to all applications/applicants regardless of tax status.

Q. I am submitting a vendor application after the deadline because the organizer did not contact me at least 14 days prior to the event. Do I have to pay the late fee?

A. You are still required to pay the late fee.

Q. Who submits the vendor application?

A. Each food service location is required to have a permit. The person or group that is serving the food/beverage is considered to be a vendor and must submit an application.

Q. How should I submit my application?

A. Permit applications may be mailed, faxed, e-mailed or presented in person at the address below:

Suffolk County Department of Health Services
Bureau of Public Health Protection
360 Yaphank Avenue, Suite 2A
Yaphank NY 11980
(631) 852-5999 FAX (631) 852-5871
EMAIL: PHP@suffolkcountyny.gov

Q. How can I pay for my permit(s)?

A. You may pay with a check or money order made payable to "The Commissioner of Health Services" (please include the name and date of the event on the memo line). Credit card payments may be made with a Visa or Master Card either in person or *via telephone.*

American Express, Discover Card, or credit cards issued by any other company are not accepted. Cash cannot be accepted for payment. Inspectors are not permitted to collect fees in the field. Total fees will be determined at the time of payment; a permit application is not complete until payment is received. Late fees will be applied to application fees if payment is submitted after the specified deadlines.

Q. When will I get my permit?

A. Once the application is approved, the permit will be issued and a copy of the permit will be sent to the applicant via the contact information provided on the original application.

Q. How long does it take to get the permit approved?

A. Your application will be reviewed prior to the event (usually the week prior to the event, but perhaps earlier depending on the volume of applications). After reviewing the application, the contact person listed on the application will be called to review temporary food safety and answer any outstanding questions. Once this is completed, the permit will be issued. Incomplete or unreadable applications and incorrect or missing contact information can delay the process and may result in your permit being delayed or rejected.

Q. Do I need to bring the permit with me to the event?

A. Yes, the permit should be brought to the event and made available for inspection.

Q. My event is this weekend. I just found out, and I need to submit an application. Can I still participate?

A. You may still submit an application, however applications submitted less than 14 days prior to an event are subject to a late fee and your menu may be restricted. Applications submitted less than two business days prior to the event must be submitted in person and permit issuance is not guaranteed.

Q. Some of the items on the Organizer and Vendor applications do not apply to my booth set-up, do I need to complete them?

A. All sections/items on the Organizer application must be completed. Vendors must complete all sections/items on the Vendor application based on the type of booth set-up. If a particular section or item does not apply to your booth, note it on the application. Staff that review your application will require all of the requested information before they can issue a permit.

Q. I already have a permit for my restaurant, do I still need a Temporary Event Permit?

A. Whenever you prepare or serve food outside of your permitted establishment at a public event, you are required to obtain a Temporary Event Permit. If you are catering off-site at a private event (wedding, family party), Off-Premises Catering approval is required for your food service establishment. A written proposal must be submitted and approved by the Department prior to offering off-premises catering.

For more information about Off-Premises Catering:
https://www.suffolkcountyny.gov/Departments/Health-Services/Public-Health-Protection/Food-Protection/PHP-Documents-and-Forms
(631) 852-5999 FAX (631) 852-5871
EMAIL: PHP@suffolkcountyny.gov

TEMPORARY EVENT ORGANIZERS

Q. What equipment/facilities does an event organizer need to provide?

A. Event organizers must provide bathrooms with flush toilet(s) with a running water hand wash sink for food handlers, and bathroom facilities for the public. Organizers may also be required to provide potable water, electricity, refrigeration, 3-compartment sink, waste disposal, etc. See Temporary Event Standards for detailed information.

Q. Can I provide Port-a-Potties at my event?

A. Port-a-potties may be provided for patrons (NOT food handlers), and one hand washing facility must be provided for every five toilet facilities (minimum of one hand wash station).

Q. Why does the Department need a site plan?

A. A site plan allows us to view the layout of the event and determine if there are any public health risks PRIOR to event set up, and is required prior to issuing the event organizer's permit. See picture below and refer to the Organizer application for site plan requirements.

TEMPORARY EVENT VENDORS

Q. I am only giving out free samples of food, am I still required to get a permit?

A. Yes. If you are handling food or beverage (pouring, serving) to be consumed on site then a permit is still required. Depending on the food samples you are providing, you may be eligible for an annual Temporary Event Sampler's permit. Please contact the Department for details.

Q. My food product is pre-packaged. Do I still need a permit?

A. If your product is individually pre-packaged, does not require heat treatment or refrigeration for food safety, is manufactured in a commercial, licensed/permitted facility and is labeled according to New York State Guidelines, a Temporary Event permit is not required, unless you are opening packages to give out samples (see prior question). You should, however, bring a copy of your food processing license to the event with you.

Q. I am serving beverages only (coffee, lemonade, alcoholic beverages, etc.). Am I still required to obtain a permit?

A. Yes. If you are handling food or beverage (poured, served) to be consumed on site, then a permit is required.

Q. What equipment is required in my temporary event booth?

A. You are required to have:
Flooring (booths on asphalt or concrete do not require flooring)
Overhead protection (must cover all food service/prep areas except for BBQ or grill)
Tables or other perimeter barrier (to restrict entry into the booth)
Refrigeration (if applicable)
Cooking/Hot Holding Equipment (if applicable)
Stem thermometer (0ºF - 220ºF with 2 degree increments is required)
Sanitizing solution (50 - 200 ppm chlorine or equivalent)
Hand washing station
Disposable gloves/utensils
Food Manager/Food Safety certificate holder on-site
3-compartment sink (if event is more than 1 day and/or if there is on site food prep)
Additional equipment may be required depending on the menu.

Q. Can I use insulated coolers with ice to transport food to an event?

A. Insulated coolers with ice are permitted for distances of ten miles or less. If you are transporting foods that require temperature control for safety (TCS foods) a distance of greater than ten miles, mechanical refrigeration is required during transport.

Q. What equipment is needed to transport hot foods to an event?

A. Insulated transport units are required for all foods that require temperature control for safety (TCS foods) during transport to the event. Foods that are transported hot must arrive at the event with a product temperature of 140°F or above. All transport equipment must be commercial grade and NSF approved.

Q. I am using a food vending vehicle at the event, not setting up a booth. Am I still required to obtain a permit?

A. Temporary Event permits are required for each event unless your vehicle has an annual or biannual permit. To obtain an annual or biannual permit for a Limited Food Establishment, plan review and approval is required. Plan review applications are available at:

https://www.suffolkcountyny.gov/Departments/Health-Services/Public-Health-Protection/Food-Protection/PHP-Documents-and-Forms
or contact the Bureau directly at:
(631) 852-5999 FAX (631) 852-5871
EMAIL: PHP@suffolkcountyny.gov

Q. Can I get an annual/seasonal permit for my booth/stick stand?

A. Suffolk County offers an annual (seasonal) permit for a booth/stick stand for vendors who provide samples of non-TCS foods at no charge.
An annual (seasonal) permit for a booth/stick stand is also available for vendors who serve molluscan shellfish at temporary events with food service permitted by Suffolk County.

Please contact the Department for permit requirements.

Q. The permit application requires the name of the person at this event with a Food Manager's Certificate. Why is this required?

A. The Suffolk County Department of Health Services requires that all food service establishments, including Temporary Events with food service, be managed by a person in charge and on site who holds a valid Food Safety Certificate (from an approved program) during all hours of operation, including any time that food is handled prior to an event.

Q. Can I use sanitizing wipes at the event instead of a sanitizing bucket with wiping cloths?

A. Sanitizing wipes are not permitted as the strength of the sanitizer in a sanitizing wipe is difficult to measure, and these wipes may leave a residual film on food prep surfaces. A mixture of bleach and water (200 ppm) in a labeled spray bottle and paper towels may be used instead of an open sanitizer bucket.

Q. How do I fill out the "Menu and Preparation Procedures" section?

A. Each menu item must be listed separately and all applicable food preparation form fields completed for that item.

Q. Can I prepare food in my home?

A. Home prepared foods are *strictly prohibited* unless you hold an exemption from licensing from the New York State Department of Agriculture and Markets (limited menu items may be approved by Agriculture and Markets for home prep and may include foods that do not require heat treatment or refrigeration such as home prepared cakes, breads, etc.). Contact the NYS Department of Agriculture and Markets at (718) 722-2876 or https://agriculture.ny.gov/food-safety/home-processing to determine how to obtain an exemption.

Q. Why do you need the food source information?

A. Food source information is required so that accurate trace back can be conducted in the event of a complaint or report of foodborne illness. Shellfish tags and receipts for food items used at an event must be available for inspection upon request and must be saved for 90 days after the event.

Q. Will a sanitarian inspect my food service operation at the event?

A. Your booth or stand may be inspected. Events are chosen for unannounced inspection based on a variety of factors. Sanitarians are assigned to inspect temporary events throughout the year.

Q. What will the sanitarian check during my inspection?

A. All the basic food safety requirements that apply to a restaurant also apply to Temporary Event Vendors. In general, a sanitarian will check that the booth is set up properly, that all food items are being cooked and held at the proper temperatures, that food is being stored and served in a sanitary manner and that a Food Manager/Food Safety certificate holder is on site and in charge of the operation.

Q. What happens after my inspection?

A. The sanitarian will provide you with a written report. Your report will indicate any violations cited as well as the corrective actions taken for violations that require immediate correction. At the end of your inspection, you will be asked to sign the report and a copy will be given to you.

Q. Will I have to pay a fine for any violations?

A. There are several violations that are subject to immediate legal action. The most common violations that lead to legal action are operating without a valid permit, bare hand contact with ready-to-eat foods and foods openly displayed without protection from contamination. Legal action may also be initiated if you are cited for the same violation over the course of multiple events. In this case, you would be contacted by mail. In all cases however, you would have the opportunity to attend a hearing prior to the assessment of a penalty.

For all questions not answered here, please contact us directly:

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